

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3472

By: Kerbs

COMMITTEE SUBSTITUTE

An Act relating to environment and natural resources;
amending 27A O.S. 2021, Section 2-11-401.1, which
relates to definitions; modifying definition; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-11-401.1,
is amended to read as follows:

Section 2-11-401.1. As used in the Oklahoma Used Tire Recycling
Act:

1. "ASTM" means the American Society for Testing and Materials;
2. "Automobile" means every motor vehicle of the type
constructed and used for the transportation of ten (10) persons or
less, including the driver, or used for the transportation of
property. Provided, however, that the automobile's gross vehicle
weight rating does not exceed sixteen thousand (16,000) pounds;

1 3. "Automotive dismantler and parts recycler" means the same as
2 defined in Section 591.2 of Title 47 of the Oklahoma Statutes;

3 4. "Commission" means the Oklahoma Tax Commission;

4 5. "Department" means the Department of Environmental Quality;

5 6. "End use" means a Department-approved ultimate economic use
6 for a used tire or tire-derived product, including granulated
7 rubber, ground rubber, tire chips, tire-derived aggregate, tire-
8 derived fuel and tire shreds;

9 7. "Fund" means the Used Tire Recycling Indemnity Fund;

10 8. "Granulated rubber" means particulate rubber composed of
11 mainly nonspherical particles that span a broad range of maximum
12 particle dimensions, from below four hundred twenty-five thousandths
13 (0.425) of a millimeter (40 mesh) to twelve (12) millimeters (0.47
14 inches) pursuant to current ASTM standards;

15 9. "Ground rubber" means particulate rubber composed of mainly
16 nonspherical particles that span a broad range of maximum particle
17 dimensions, from below four hundred twenty-five thousandths (0.425)
18 of a millimeter (40 mesh) to two (2) millimeters (0.08 inches)
19 pursuant to current ASTM standards;

20 10. "Motorcycle" means a motor vehicle of a type defined in
21 Section 1-135 of Title 47 of the Oklahoma Statutes;

22 11. "Motor-driven cycle" means a motor vehicle of a type
23 defined in Section 1-136 of Title 47 of the Oklahoma Statutes;
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1 12. "Motor vehicle" means the same as defined in Section 1-134
2 of Title 47 of the Oklahoma Statutes;

3 13. "Priority cleanup list" means a list, created and
4 maintained by the Department, of:

5 a. unpermitted dumps which did not exist when the owner
6 took possession of the property where the tires are
7 located, and were created without the consent of or
8 benefit to the owner of the property, and

9 b. such other tire dumps designated by the Department
10 pursuant to Section 2-11-401.6 of this title;

11 14. "Reusable tire" means a tire that has been previously used
12 on a vehicle, not currently mounted on a vehicle, but can be legally
13 placed into service for vehicle use in Oklahoma;

14 15. "Semitrailer" means the same as defined in Section 1-162 of
15 Title 47 of the Oklahoma Statutes;

16 16. "Tire" means any solid or air-filled covering for vehicle
17 wheels;

18 17. "Tire chips" means pieces of scrap tires that have a basic
19 geometrical shape and are generally between twelve (12) millimeters
20 (0.47 inches) and fifty (50) millimeters (1.97 inches) in size and
21 have most of the wire removed pursuant to current ASTM standards;

22 18. "Tire dealer" means any person engaged in the business of
23 selling new and used tires to final consumers, not for resale;

1 19. "Tire-derived aggregate" means pieces of scrap tires that
2 have a basic geometrical shape and are generally between twelve (12)
3 millimeters (0.47 inches) and three hundred five (305) millimeters
4 (12.01 inches) in size and are intended for use in civil engineering
5 applications pursuant to ASTM standards;

6 20. "Tire-derived fuel" means whole tires or processed tires
7 that can be used for energy or fuel recovery pursuant to current
8 ASTM standards;

9 21. "Tire-derived fuel facility" or "TDF facility" means a
10 facility that uses processed tires or whole used tires for energy or
11 fuel recovery;

12 22. "Tire-derived product" means matter that:

- 13 a. is derived from a process that uses whole tires as a
14 feedstock, including chipping for the purpose of fuel
15 recovery, granulating and grinding,
- 16 b. adheres to established engineering or other
17 appropriate specifications or to established product
18 end-user specifications or customer conditions of
19 acceptance,
- 20 c. has a demonstrated benefit associated with the end
21 use, and
- 22 d. can be used as a substitute for or in conjunction with
23 a commercial product or raw material;

1 23. "Tire shreds" means pieces of scrap tires that have a basic
2 geometrical shape and are generally between fifty (50) millimeters
3 (1.97 inches) and three hundred five (305) millimeters (12.01
4 inches) in size pursuant to current ASTM standards;

5 24. "Trailer" means the same as defined in Section 1-180 of
6 Title 47 of the Oklahoma Statutes;

7 25. "Used tire" means an unprocessed whole tire or tire part
8 that can no longer be used for its originally intended purpose but
9 can be beneficially reused as approved by the Department. Any used
10 tire collected in accordance with the requirements of the Oklahoma
11 Used Tire Recycling Act is not considered to be discarded. A tire
12 that can be used, reused or legally modified to be reused for its
13 original intended purpose shall not be a used tire;

14 26. "Used tire processing" means altering the form of whole
15 used tires by shredding, chipping or other method approved by the
16 Department, except baling ~~and pyrolysis~~. For purposes of this act
17 only, tire pyrolysis shall, for a five-year period ending on July 1,
18 2031, meet the definition of used tire processing until July 1,
19 2031, but not thereafter. Any tire pyrolysis facility shall not be
20 considered an advanced recycling facility but rather a used tire
21 recycling facility and subject to all applicable statutes and rules
22 for such facilities;

23 27. "Used tire recycling facility" means any place which is
24 permitted as a solid waste disposal site, in accordance with the

1 Oklahoma Solid Waste Management Act, at which used tires are
2 processed; and

3 28. "Vehicle" means the same as defined in Section 1-186 of
4 Title 47 of the Oklahoma Statutes.

5 SECTION 2. This act shall become effective November 1, 2026.

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